

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Justice Yahya Afridi, CJ
Justice Muhammad Ali Mazhar

C.P.L.A.No.4677 OF 2025

Against the Order dated 27.08.2025
passed by Punjab Service Tribunal,
Lahore in Appeal No.3639/2023.

Shahzad Hussain

...Petitioner

Versus

Additional Inspector General of Police, South
Punjab, Multan and others.

...Respondents

For the Petitioner:

Haji Muhammad Tariq Aziz Khokhar, ASC

For the Respondents:

Mr.Sanaullah Zahid, Addl. A.G Punjab
Rana Ashraf, SP. (Investigation)

Date of Hearing:

24.11.2025

Judgment

Muhammad Ali Mazhar:- This Civil Petition for leave to appeal has been brought to challenge the Order dated 27.08.2025 passed by Punjab Service Tribunal, Lahore (Tribunal) in Service Appeal No.3639/2023.

2. The facts of the case are that during posting as constable, the petitioner was arrested on 20.08.2021 by the Anti-Corruption Establishment Police, Rajanpur, in the FIR No.11 of 2021, lodged by the complainant (Shahzad Sarwar) under Sections 161 PPC & 5 (2) of the Prevention of Corruption Act, 1947 on the allegations that the petitioner demanded Rs.200,000/- as bribe/illegal gratification in the name of his officer to arrange a job for the complainant and received Rs.30,000/- as advance. The petitioner faced the trial and was acquitted by the learned Special Judge, Anti-Corruption, D.G. Khan, vide judgment dated 16.12.2022. On 13.09.2021, when the petitioner was in jail, he was charge sheeted and placed under suspension vide office order dated 10.09.2021.

The departmental inquiry was entrusted to SP (Investigation), Rajanpur, on 13.09.2021 with the directions to submit report. The SP (Investigation) found the petitioner guilty and he was dismissed from service vide dismissal order dated 18.12.2021. The petitioner filed a departmental appeal but it was rejected. Thereafter, the petitioner filed revision petition which was dismissed vide order dated 25.05.2023. Ultimately, the petitioner filed the service appeal but it was also dismissed by the learned Tribunal vide impugned order.

3. The learned counsel for the petitioner argued that the petitioner's long service could not be destroyed by involvement in a criminal case in which he was acquitted. He further contended that the involvement in a criminal case cannot become the sole ground to initiate proceedings against the petitioner. It was further averred that the competent authority could not impose the major penalty of dismissal from service by merely agreeing with the findings recorded in the inquiry report without applying judicious mind. He further argued that while exercising appellate jurisdiction, the learned Service Tribunal failed to consider and appreciate the relevant facts of the case as to whether any regular inquiry was conducted or not but dismissed the service appeal merely on the ground of limitation without touching upon the merits of the case. In the concluding remarks, he further avowed that the department also violated the provisions of Punjab Police (E&D) Rules, 1975, hence the penalty imposed on the petitioner is liable to be set aside.

4. The learned Addl. A.G Punjab argued that after inquiry, the petitioner was dismissed from service on 18.12.2021 on the charges of misconduct. He was indicted in the criminal case lodged by the complainant (Shahzad Sarwar) who applied for recruitment as Constable in the police department and alleged that the petitioner demanded Rs.200,000/- in lieu of his recruitment as constable and the complainant also paid Rs.30,000/- as first installment. It was further argued that since the complainant was not inclined to pay the bribe amount to the delinquent official, so,

he approached the Anti-Corruption Department and lodged the FIR. It was further averred that the petitioner was rightly dismissed from service and deserves no relaxation as a member of disciplined force.

5. Heard the arguments. It is a matter of fact that besides criminal proceedings set into motion against the petitioner, he was also suspended from duty on 10.09.2021 and in order to thrash out the allegations contained in the charge sheet, the departmental inquiry was entrusted to SP (Investigation), Rajanpur, vide office order dated 13.09.2021. According to the findings recorded by the inquiry officer in his report, the petitioner was found guilty. On 16.12.2021, he was summoned to appear in an orderly room for personal hearing and he was heard in person in detail. This also reflects from the record that since the complainant was not inclined to pay bribe money to the delinquent official, he approached and complained to the Anti-Corruption Department, thereafter, a raid was conducted with trap in the supervision of learned Judicial Magistrate and the accused was apprehended red handed at the spot with tainted money of Rs.30,000/-. Furthermore, on dismissal of departmental appeal, the petitioner ought to have filed the appeal in the learned Service Tribunal but he preferred revision petition which was rejected vide order dated 25.05.2023. Afterwards, the petitioner filed his service appeal on 03.07.2025 which was found barred by 01 year 02 months and 17 days. So far as the acquittal is concerned, it is gleaned from the record that the petitioner managed his acquittal on the basis of technicalities by winning over the prosecution witnesses. The preview of judgment of acquittal rendered in favour of petitioner demonstrates that the complainant admitted during the hearing of bail application of petitioner/accused that he tendered an exonerating affidavit in which he specifically mentioned that he has no objection on the release of accused/petitioner on bail or his acquittal. The affidavit submitted for exonerating the petitioner by the complainant could not dislodge or wash out the effect of raid conducted under the supervision of Judicial Magistrate and

recovery of tainted money from the possession of petitioner on the spot, a crucial aspect which was taken quite perfunctorily and superficially in the judgment of acquittal.

6. The acquittal on mere technicalities or on the basis of compromise or due to botched up investigation/lapses of prosecution may be helpful and recognizable for the acquittal from a criminal case to the extent of that particular indictment but it does not extend or mature any vested right or premium for an automatic reinstatement in service keeping aside the departmental proceedings initiated on the ground of misconduct especially in the case of disciplined force, therefore despite acquittal, the delinquent has to pass through the acid test of departmental proceedings first and cannot force the employer to reinstate him come what may.

7. The doctrine of disciplined force in policing mannerism denotes the significance of in-house discipline, accountability, obedience and faithfulness to the rule of law in order to attain a legitimate law enforcement objective rather than extrajudicial actions. A well-disciplined force requires dynamic internal and external accountability contrivances to ensure and develop public trust and confidence in the public at large. The integrity and reputation of officers of a disciplined force should be untarnished and immaculate with the highest degree of public trust and confidence which is the bedrock of effective policing system. If the credibility or uprightness of an individual from a disciplined force is compromised or questioned, it reflects bad impact and jeopardizes the goodwill of entire institution/system. No doubt the acquittal detaches the stigma or guilt but this in no way mindlessly or automatically warrants reinstatement of service in a disciplined force. On the contrary, despite acquittal, the competent authority in a disciplined force has the jurisdiction and authority to initiate disciplinary action and conduct inquiry independently to assess the gravity of misconduct/charges including the nature of acquittal. Moreover, the question of reinstatement or no

reinstatement will strictly depend upon the outcome of inquiry. So mere acquittal from indictment in criminal case does not proffer any legitimate ground for reinstatement in service in a disciplined force but it is always subject to the satisfaction of the competent authority by means of internal disciplinary mechanism including the suitability and fitness. Further, the competent authority must keep the eyes open by all means to ensure that only the officers of clean antecedents and rectitude are engaged or reinstated in service being optimistic to the weightage and perception of public trust and confidence reposed on a disciplined force. Regardless of acquittal of the police officials in the heinous crimes such as murder, rape, dacoity, theft, illegal gratification, extra judicial killing or offences of moral turpitude etc., the competent authority of disciplined force has every right to decide whether the officer of such antecedents may be taken back or not or to part with in the larger public interest.

8. It is well settled exposition of law that criminal proceedings and disciplinary proceedings both have distinctive characteristics and attributes with regard to the standard of proof. In trial of criminal cases, the prosecution has to prove the guilt beyond reasonable doubt while in the departmental inquiry, the standard of proof required to be considered is the balance of probabilities or preponderance of evidence. Both proceedings can be run together and concurrently without any overriding or overlapping effect. This Court in the following dicta articulated the same principle more coherently and dynamically:

1. Manzar Abbas and another Versus District Police Officer, Sargodha and others (2023 SCMR 2111). The main thrust of the learned counsel for the petitioners was that acquittal in the criminal case precludes departmental/disciplinary proceedings on the same charges. We are afraid, the case of Muhammad Iqbal v. District Police Officer, Sahiwal and another (2011 SCMR 534) does not support the stance of the learned counsel for the petitioners. It was held that acquittal in a criminal trial does not serve as an embargo against disciplinary proceedings, and that departmental and criminal proceedings may proceed concurrently, and the result of one does not impinge upon the other. Nonetheless, an acquittal in a criminal case may be considered during disciplinary proceedings but cannot be the sole determining factor in deciding the fate of the disciplinary proceedings.

2. Faraz Naveed Vs District Police Officer Gujrat and another (2022 SCMR 1770). Object of criminal trial is to mete out punishment of the

offences committed by the accused while departmental inquiry is inaugurated to enquire into the allegations of misconduct in order to keep up and maintain the discipline and decorum in the institution and efficiency of department to strengthen and preserve public confidence. The police force is a disciplined force with cumbersome accountability and responsibility of maintaining law and public order in the society and populace, therefore, any person who wants to be part of the disciplined force should be a person of utmost integrity and uprightness with unimpeachable/spotless character and clean antecedents. Despite acquittal, it is the privilege and prerogative of the employer which is in this case "Punjab Police Force". So, it is for the department to examine fairly and equitably whether the petitioner has been completely exonerated or not and his further induction may not become a constant threat to the discipline of the police force and public confidence and may also not demoralize and undermine the environment and frame of mind of the upright and righteous members of the force, therefore a person having criminal antecedents would not be fit to be restored or reinstated to his previous position or post.

3. Ghulam Murtaza v. District Police Officer, Gujrat and others (2025 SCP 411). The Court reaffirmed that departmental and criminal proceedings occupy distinct legal domains with different standards of proof and may ordinarily proceed independently. However, where the sole basis of departmental action is an employee's involvement in a criminal case, without any independent allegation of misconduct, an acquittal in the criminal proceedings removes the very foundation of the departmental charge. In such cases, proceeding further would violate constitutional guarantees of due process, dignity, and livelihood under Articles 10A, 14 and 9 respectively.

4. Muhammad Ayub Vs The Chairman, Electricity Board, Wapda, Peshawar and another (PLD 1987 SC 195). The important words in the above provision are "the same offence". The word "offence", while sometimes used in various senses, here implies a crime infringing/public as distinguished from mere .private rights, and is punishable under the criminal law. Indeed this provision is a protection against double punishment and the punishment contemplated under Article 13 is a punishment that has been imposed upon a person as a result of a criminal prosecution. Hence any penalty imposed on a civil servant as a consequence of departmental proceedings under the Efficiency and Discipline Rules, after the accused officer has been acquitted of a criminal charge, is not barred. What this provision bars, as observed earlier, is a fresh trial and punishment for the same offence and not the infliction of a penalty as a result of departmental proceedings.

5. Talib Hussain Vs Anar Gul Khan and 4 others (1993 SCMR 2177). Criminal proceedings and departmental action can go on side by side and may even end in varying results. See Deputy Inspector-General of Police v. Anis-ur-Rehman Khan PLD 1985 SC 134. The reason for this is very simple. In departmental proceedings the desirability of a civil servant to continue in service is under examination whereas the object of the criminal proceedings is to determine and enforce the criminal liability of an accused. The nature of evidence and the standards of proof are different in the two proceedings.

6. Muhammad Izharul Ahsan Qureshi vs M/s. P.I.A.C. (1994 SCMR 1608). The correct legal position is that inquiry proceedings and criminal case can go on side by side and finding in inquiry proceedings can survive without being affected by finding of acquittal in the criminal case.

7. Arif Ghafoor vs Managing Director, H.M.C., Texila and others (PLD 2002 SC 13). The "disciplinary proceeding" and "criminal proceedings" are quite distinct to each other having altogether different characteristics and there, is nothing common between the adjudicative forums by whom separate prescribed procedure and mechanism is followed for adjudication and both the forums have their own domain of jurisdiction.

The decision of one forum would have no bearing on the decision of other forum in any manner whatsoever. In the said background, it would be a misconceived notion to consider the acquittal in a criminal trial as an embargo against disciplinary proceedings.

8. Executive Engineer and others versus Zahid Sharif (2005 SCMR 824). A careful scrutiny of the entire record would reveal that serious charges of corruption were levelled against the respondent and his acquittal from the Court does not impose any bar for the initiation of disciplinary proceedings as the acquittal of respondent would have no bearing on the disciplinary proceedings altogether.

9. Dr. Sohail Hassan Khan and others Vs Director General (Research), Livestock And Dairy Development Department, Punjab, Lahore and others (2020 SCMR 1708). It is by now well settled that a civil servant cannot escape departmental proceedings or consequences thereof on account of his acquittal/exoneration on a criminal charge arising out of the same impugned transaction; these two are entirely different jurisdictions with different standards of proof as well as procedures; criminal prosecution requires strict proof through a narrowly jacketed procedure and, thus, State's failure on criminal plane does not provide shield of double jeopardy to a delinquent officer.

9. All the more so, while encountering similar situation, the jurisprudence laid down by the Supreme Court of India is not asymmetric or mismatched, rather it is structured on one and the same philosophy of law to cope with the alike set of circumstances. In the case of Union Territory, Chandigarh Administration and others v. Pradeep Kumar and another (2018 1 SCC 797), the Court held that the acquittal in a criminal case is not conclusive of the suitability of the candidates on the post concerned. While in the case of Union of India v. Methu Meda in Appeal No. 6238 of 2021, the respondent was found involved in an offence of kidnapping for demand of ransom. He was tried before the Sessions Court but was acquitted because the complainant turned hostile. The respondent applied for the post of Constable in Central Industrial Security Force and got selected. In his credentials and antecedents, he mentioned the registration of criminal case and acquittal. As the offer letter was conditional, therefore, he was not allowed to join and his case was referred to Standing Screening Committee which examined the cases of several candidates including the respondent and passed an order that respondent was not eligible for appointment. The said order was assailed before the Division Bench by filing Writ Appeal, but State appeal was dismissed. Finally, the judgment was challenged in the Supreme Court which took the guidance from earlier judgment rendered in the case of Mehar Singh wherein it was held inter alia that the police force is a disciplined force. It shoulders the great responsibility of maintaining law and order and public order in the

society. People repose great faith and confidence in it. It must be worthy of that confidence. A person having criminal antecedents would not be fit in this category. The employer has the right to consider the nature of acquittal or decide until he is completely exonerated because even a possibility of his taking to the life of crimes poses a threat to the discipline of the police force. In the case of Inspector General of Police & Anr. v. S. Samuthiram (**2013 1 SCC 598**), the Court held that mere acquittal of an employee by a criminal court has no impact on the disciplinary proceedings initiated by the Department. In a criminal case, the onus of establishing the guilt of the accused is on the prosecution and if it fails to establish the guilt beyond reasonable doubt, the accused is assumed to be innocent. It is settled law that the strict burden of proof required to establish guilt in a criminal court is not required in a disciplinary proceedings and preponderance of probabilities is sufficient. There may be cases where a person is acquitted for technical reasons or the prosecution giving up other witnesses since few of the other witnesses turned hostile etc. In the case of Southern Railway Officers Association & Anr v. Union of India (**2009 9 SCC 24**), it was held that acquittal in a criminal case by itself cannot be a ground for interfering with an order of punishment imposed by the disciplinary authority. It is now a well settled principle of law that the order of dismissal can be passed even if the delinquent official had been acquitted of the criminal charge. While in the case of General Manager, UCO Bank & Anr. v. M. Venu Ranganath (**2007 13 SCC 251**), it was pointed out that acquittal in a criminal case has nothing to do with departmental proceedings and this law is clearly well settled. Notwithstanding acquittal in a criminal case, departmental proceedings can be initiated and/or continued because the criminal proceedings and departmental proceedings operate in different fields. Even though the person may have been acquitted in a criminal trial, there is no embargo on his being departmentally proceeded against.

10. Though the learned Service Tribunal nonsuited the petitioner on the sole question of limitation without adverting to the merits, the learned counsel also attempted and argued to convince us on

merits and relied on the case of Ghulam Murtaza (supra) authored by two member bench in which reinstatement in service was accorded on acquittal for certain departmental lapses, a situation in which it can neither be considered obligatory as a rule in each and every case, nor can a clean slate or license to accord reinstatement in every case of acquittal be given, but it depends, first on the outcome of departmental inquiry and then fair and fine sense of judgment of the departmental authority whether the delinquent deserves, fit and suitable for reinstatement or not. Moreover, the arguments advanced by the learned counsel for the petitioner were also rebutted by the learned Addl. A.G Punjab, who relied on the various dicta laid down by this Court including the judgments rendered by three members benches of this Court in the case of Manzar Abbas and Faraz Naveed (supra) which are more proximate and contiguous to resolve the present controversy.

11. As a result of above discussion, the Civil Petition is found to be bereft of merits and dismissed accordingly.

Chief Justice

Judge

ISLAMABAD

24.11.2025

Khalid

Approved for reporting